

IN THE COURT OF APPEAL OF THE DEMOCRATIC SOCIALIST REPUBLIC
OF SRI LANKA

Assistant Commissioner of Co-operative Development (Kandy District),
Department of Central Province Co-operative Development.
Ehelepola Kumarihamy Road, Bogambara,
Kandy.

Plaintiff

Vs

C.A. Application No.
CA(PHC) 0032/2019
(CA(PHC)0034/2019)
(CA(PHC)0035/2019)
(CA(PHC)0053/2019)
(CA(PHC)0055/2019)
(CA(PHC)0056/2019)

Kandy High Court Case No.
HC(APPEAL)06/2019

Kandy Magistrate Court
Case No. 9550/18

Central Province Vehicle Dealing Co-operative Society Limited,
No 172/4/A, Miniruwan, Kudagalawatta,
Polgolla.

Presently at

No 207, D.S. Senanayaka Street, Kandy

Defendant Cooperative Society.

1. Amal Pradeep Jayasinghe,

No 90/2, Aniwaththa,
Kandy.

2. L. N. S. Naurunna,

No 02, Sirimalwaththa, Gunnepana.

3. M. K. Weerasinghe,

No 32, Bahirawakanda Lane, Asgiriya,
Kandy.

4. S. M. S. Herath,

Dodamwala road, Asgiriya,
Kandy.

Presently at

NO 207, D.S. Senanayaka Street,
Kandy.

Notice received Respondents

AND BETWEEN

**1. Central Province Vehicle Dealing Co-
Operative Society Limited,**

No 172/4/A, Miniruwan,
Kudagalawatta, Polgolla.

Presently at

No 207, D.S. Senanayaka Street, Kandy

Defendant-Appellant

Vs

2. Amal Pradeep Jayasinghe,

No 90/2, Aniwaththa,
Kandy.

3. L.N.S.Naurunna

No.02, Sirimalwaththa, Gunnepana.

4. M. K. Weerasinghe,

No 32, Bahirawakanda Lane,
Asgiriya, Kandy.

2nd to 4th Appellants

Vs

**Assistant Commissioner of Co-operative
Development** (Kandy District),
Department of Central Province
Co-operative Development.
Ehelepola Kumarihamy Road, Bogambara,
Kandy.

Plaintiff-Respondent.

2. S. M. S. Herath,

Dodamwala road, Asgiriya,
Kandy.

Presently at
NO 207, D.S. Senanayaka Street,
Kandy.

2nd Respondent

AND NOW BETWEEN

**1. Central Province Vehicle Dealing Co-
Operative Society Limited,**

No172/4/A, Miniruwan, Kudagalawatta,
Polgolla.

Presently at
NO 207, D.S. Senanayaka Street, Kandy

Defendant-Appellant-Appellant

2. Amal Pradeep Jayasinghe,

No 90/2, Aniwaththa,
Kandy.

3. L. N. S. Naurunna,

No 02, Sirimalwaththa,
Gunnepana.

4. M. K. Weerasinghe,

No 32, Bahirawakanda Lane, Asgiriya,
Kandy.

Notice received 2nd to 4th Appellants-Appellants

Vs

**Assistant Commissioner of Co-operative
Development** (Kandy District),

Department of Central Province Co-
operative Development.

Ehelepola Kumarihamy Road, Bogambara,
Kandy.

Plaintiff-Respondent-Respondent

2. S. M. S. Herath,

Dodamwala road, Asgiriya,
Kandy.

Presently at

NO 207, D.S. Senanayaka Street,
Kandy.

2nd Respondent-Respondent

Before : **D. THOTAWATTA, J.**
K. M. S. DISSANAYAKE, J.

Counsel : Priyantha Alagiyawanna instructed by
Bushra Hashim for the Defendant-
Appellant-Appellant and the notice received
02nd to 04th Appellants-Appellants.
Shemanthi Dunuwille, SC for the State.

Written Submissions
of the Defendant-
Appellant-Appellant
and the notice received 02nd to
04th Appellant-Appellant
tendered on : 11.09.2024 and 10.05.2026

Written Submissions
of the Plaintiff-Respondent
-Respondent and
2nd Respondent-Respondent
tendered on : Not tendered.

Decided on : 10.07.2026

K. M. S. DISSANAYAKE, J.

The Defendant-Appellant and the 2nd to 4th Appellants had in the appeal bearing No. HC(APPEAL) 06/2019 filed by them in the High Court of the Central Province holden at Kandy (hereinafter called and referred to as ‘the High Court of the Province’) invoked the appellate jurisdiction of the High Court of the Province against an order of the learned Additional Magistrate of Kandy, dated 22.01.2019, (hereinafter called and referred to as “the MC order”) and the learned High Court Judge of the Central Province holden at Kandy (hereinafter called

and referred to as “the learned High Court Judge of the Province”) had in the order dated 15.03.2019 (hereinafter called and referred to as ‘the HC order’), dismissed it *in-limine* by holding that the right of appeal from the MC order to the High Court of the Province had not been conferred upon the Appellants and hence, an appeal would not lie therefrom to the High Court of the Province. Hence, the instant appeal to this Court by the Defendant-Appellant-Appellant and the noticed received 2nd to 4th Appellants-Appellants (hereinafter called and referred to as “the Appellants”).

It is to be noted at this juncture, that when the instant appeal bearing No. **CA(PHC)0032/2019** came on before us for argument on 26.01.2026, the learned Counsel for the Appellants as well as the learned State Counsel in Appeals bearing Nos. **CA(PHC)0034/2019**, **CA(PHC)0035/2019**, **CA(PHC)0053/2019**, **CA(PHC)0055/2019** and **CA(PHC)0056/2019** informed Court that the parties thereto, too, are agreeing to be bound by the judgement of this Court in the present appeal bearing No. **CA(PHC)0032/2019** and hence, the judgement in the instant appeal bearing No. **CA(PHC)0032/2019** will bind all the parties in Appeals bearing Nos. **CA(PHC)0034/2019**, **CA(PHC)0035/2019**, **CA(PHC)0053/2019**, **CA(PHC)0055/2019** and **CA(PHC)0056/2019** too, as urged and agreed by the respective Counsel.

Furthermore, respective Counsel for the parties had informed Court that appeal can be disposed of by way of written submissions and hence, the judgement was reserved on the strength of the written submissions as so urged and agreed by the respective Counsel.

However, when the instant appeal bearing No. **CA(PHC)0032/2019** came on before us on 05.06.2026 for the delivery of the judgement, it was observed by this Court upon a careful perusal of the petition of appeal filed in this Court in the instant appeal as well as the petitions of appeal filed in the appeals bearing Nos. **CA(PHC)0034/2019**, **CA(PHC)0035/2019**, **CA(PHC)0053/2019**, **CA(PHC)0055/2019** and **CA(PHC)0056/2019** that all the appeals have arisen from the

orders made by the High Court of the Province in the exercise of the Appellate Jurisdiction vested in it by Article 154P(3)(b) of the Constitution of the Democratic Socialist Republic of Sri Lanka (hereinafter called and referred to as “the Constitution”) dismissing all of them for want of right of appeal.

A careful scrutiny of section 9 of the Act, makes it manifest that appeal will directly, lie to the Supreme Court in the manner as provided for by section 9 of the Act from orders made by the High Court of the Province in the exercise of the appellate jurisdiction vested in it by Article 154P(3)(b) of the Constitution and hence, not to this Court. In the circumstances, it clearly, appears that appeal will not lie from any of those orders to this Court and hence, this Court has no jurisdiction to hear and determine any of those appeals under section 9 of the Act to be read with Article 154P(3)(b) of the Constitution.

However, the Appellants to any of those appeals had not been afforded an opportunity to be heard on this jurisdictional issue and hence, this Court considered it expedient and necessary to afford all the Appellants an opportunity to be heard on this jurisdictional issue and the learned Counsel appearing for the Appellants moved Court to file written submissions dealing with the jurisdictional issue and all the parties were thus, directed to file written submissions within the period of time stipulated by this Court on the jurisdictional issue and fixed this matter for order thereon. However, it is to be observed that none of the parties had furnished written submissions to this Court on the jurisdictional issue as directed by this Court.

In the light of the law set out in section 9 of the Act to be read with 154P(3)(b) of the Constitution, I would hold that direct appeal will lie to the Supreme Court from the order sought to be impugned in the instant appeal as well as from all those orders sought to be impugned in all those appeals as enumerated above, in the manner as provided for by section 9 of the Act to be read with 154P(3)(b) of the Constitution.

I would therefore, hold that this Court has no jurisdiction to hear and determine the instant appeal or any of those appeals enumerated above arising out of the orders so made by the High Court Judge of the Province in the exercise of the appellate jurisdiction vested in it by Article 154P(3)(b) of the Constitution in view of section 9 of the Act.

In the circumstances, I would hold that the instant appeal as well as all those appeals as enumerated above, are misconceived in law and therefore, cannot sustain in law.

In the result, I would dismiss the instant appeal as well as all those appeals as enumerated above, with costs.

I would direct the Registrar to cause a copy of the order of the instant appeal to be filed of record in all those appeals bearing Nos. **CA(PHC)0034/2019**, **CA(PHC)0035/2019**, **CA(PHC)0053/2019**, **CA(PHC)0055/2019** and **CA(PHC)0056/2019**.

JUDGE OF THE COURT OF APPEAL

D. THOTAWATTA, J.

I agree.

JUDGE OF THE COURT OF APPEAL